

THE CORPORATION OF THE TOWNSHIP OF DRUMMOND/NORTH ELMSLEY

BY-LAW NO. 2020-035

ALL-TERRAIN VEHICLES, OFF-ROAD VEHICLES, AND EXTREME TERRAIN VEHICLES

**BEING A BY-LAW TO REGULATE THE OPERATION OF ALL-TERRAIN VEHICLES,
OFF-ROAD MOTORCYCLES, AND EXTREME TERRAIN VEHICLES ON ALL
HIGHWAYS UNDER THE JURISDICTION OF THE TOWNSHIP OF
DRUMMOND/NORTH ELMSLEY;**

WHEREAS Section 191.8(3) of the Highway Traffic Act, R.S.O. 1990, Ch. 8, as amended, provides that a municipality may pass by-laws:

- i) Permitting the operation of off-road vehicles with low pressure bearing tires on any highway within the municipality that is under the jurisdiction of the municipality or on any part or parts of such highway.

AND WHEREAS effective July 1, 2020, the Province of Ontario updated Regulation O. Reg. 316/03 to permit off-road motorcycles and extreme terrain vehicles on-road.

NOW THEREFORE, the Council of the Corporation of the Township of Drummond North Elmsley enacts as follows:

1. Jurisdiction

- 1.1 This By-law regulates the use of all-terrain vehicles, off-road motorcycles and extreme terrain vehicles on all highways under the jurisdiction of the Township of Drummond North Elmsley only.
- 1.2 This By-law does NOT provided authority for:
 - a) Provincial highways
 - b) County of Lanark, upper tier municipality, highways
 - c) Private roads
 - d) Any highways situated outside the Township of Drummond/North Elmsley including the portion of any boundary road not owned by the Township of Drummond/North Elmsley

2. Definitions

- 2.1 "All-terrain vehicles" shall have the same meaning as defined in Ontario Regulation 316/03 as amended.

- 2.2 “Extreme terrain vehicles” shall have the same meaning as defined in Ontario Regulation 316/03 as amended.
- 2.3 “Highway” shall have the same meaning as defined in the Highway Traffic Act.
- 2.4 “Low Pressure Bearing Tire” shall have the same meaning as defined in the Highway Traffic Act.
- 2.5 “Off-Road Motorcycle” shall have the same meaning as defined in Ontario Regulation 316/03 as amended.
- 2.6 “Off-Road Vehicle” shall have the same meaning as defined in Ontario Regulation 316/03 as amended.
- 2.7 Whenever certain hours are specified in this By-law, they shall mean Standard Time or Daylight-Saving Time, whichever is then in effect in the Township.

3. Regulation of All-Terrain Vehicles, Off-Road Vehicles, Extreme Terrain Vehicles on Highways

- 3.1 No person shall operate an all-terrain vehicle, off-road motorcycle or extreme terrain vehicle on a highway in contravention of O. Reg. 316/03, made under the *Highway Traffic Act* as amended or replaced from time to time.
- 3.2 Every person who operates an all-terrain vehicle, off-road motorcycle or extreme terrain vehicle on a highway under the jurisdiction of the Township of Drummond/North Elmsley shall comply with the following provisions:
 - a) An all-terrain vehicle, off-road motorcycle or extreme terrain vehicle shall have visible reflective strips maintained on all four sides of the vehicles;
 - b) An all-terrain vehicle, off-road motorcycle or extreme terrain vehicle shall NOT have chains or studs on its tires.
- 3.3 Curfew. Despite any section in this By-law, no person shall operate an all-terrain vehicle, off-road motorcycle or extreme terrain vehicle on a highway between the hours of 11:00 p.m. on any day and 4:00 a.m. of the next following day.
- 3.4 Boundary Roads. Regulations will be posted on boundary roads by the Township of Drummond/North Elmsley where the regulations under All Terrain Vehicles By-Laws are different or non-existent in neighbouring municipalities.

4. Penalties

- 4.1 Any person who contravenes the Highway Traffic Act or its Regulations or this by-law is guilty of an offence and upon conviction is liable to a fine as provided for in the Provincial Offences Act.

5. Validity

- 5.1 If any section, clause or provision of this by-law is for any reason declared by a court of competent jurisdiction to be invalid, the same shall not affect the validity of the by-law as a whole or any part thereof other than that section, clause or provision so declared to be invalid and it is hereby declared to be the intention that all the remaining sections, clauses or provisions of the by-law shall remain in full force and effect until repealed, notwithstanding that one or more provisions thereof shall have been declared to be invalid.

6. That By-law 2013-010 shall be and is hereby repealed.

7. That this by-law comes into force on the day of its passing

Read a first, second and third time and passed this 25th day of August 2020.

Steve Fournier, Reeve

Cindy Halcrow, Clerk Administrator

SHORT FORM WORDING

Part I Provincial Offences Act Set Fines

The sums to be paid as set fines are as follows:

Item	Column 1	Column 2	Column 4
	Short Form Wording	Provision Creating Offence	Set Fine
1	Travelling on a highway with tire studs or chains	S. 3.2 (b)	\$110.00
2	No visible reflective markings on four sides of All-Terrain Vehicle, Off- Road Vehicle, Extreme Terrain Vehicle	S. 3.2 (a)	\$110.00

NOTE: The general penalty provision for the offences listed above is Section 61 of the Provincial Offences Act, R.S.O. 1990, c. P. 33.